

Question: Answer one of the following questions using an appropriate workable ethical theory:

1. Many of the most popular apps in the world (e.g., VPNs, social networks, world news) have been removed from the App Store in China to comply with government regulations. Is it ethical for Apple to remove apps from its App Store at the request of foreign governments in order to continue doing business there?
2. A student posts on Instagram bragging about breaking a university rule, and as a result is suspended by the university. Is it ethical for the university to use social media posts as evidence for discipline?

Answer:

Given foreign government censorship demands, Apple can comply and stay, or refuse and ultimately exit. Under rule utilitarianism, it is ethical for Apple to comply and remove apps from the App Store to continue business in foreign countries.

Refusing to remove banned apps from the App Store does not benefit anyone. Certain social media and news applications are already firewall-blocked in censored countries. Additionally, nationwide firewalls like the Great Firewall make an active effort to IP-block VPN datacenters to restrict their use. Consequently, if Apple refuses to remove apps from the App Store, this doesn't guarantee useability due to pre-existing censorship techniques. Therefore, regardless of potential efforts to push back against censorship, there is no offsetting benefit. From a rule utilitarian perspective, refusing to comply doesn't add any positive components to the calculus of the rule creation process.

If Apple refuses to pull apps from the App Store, China will likely ban the App Store altogether, resulting in iPhones becoming unusable and therefore forcing Apple users onto insecure Chinese alternatives. A 2021 Lithuanian audit found built-in censorship and data harvesting on Chinese phones. If Apple refuses to comply, this would not only lack a tangible benefit, but also pose significant harm to the users forced out of the Apple ecosystem. Thus, "refuse-and-exit" supplies no benefits over "comply-to-stay" but poses a significant disadvantage resulting in rule utilitarian calculus indicating a far greater negative outcome for the "refuse-and-exit" rule.

One may argue the "comply-to-stay" rule would result in censorship normalization and hence a larger-scale downside as it's adopted, tipping the calculus scale in favor of "refuse-and-exit". Theoretically this would work as it forces countries to retract censorship demands, however this fails Quinn's "workable" test: companies wouldn't band together to challenge censorship due to market competition. In 2010, Google refused to comply with censorship laws and ultimately exited; Baidu quickly stepped up to take their place while accepting government censorship demands, demonstrating the infeasibility of universal "refuse-and-exit" adoption.

Despite the "comply-to-stay" option feeling like surrender, rule utilitarianism boils down to the rule construction calculus; both options result in non-positive outcomes, however complying is the "least negative" and therefore the ethical decision.

The review:

Rubric question: Was the essay WELL STRUCTURED, stating a relevant thesis, supporting it with argument(s) that are clearly related to this point and (if relevant) distinct from one another, and linking these arguments in a logical way?

Answer: (5) All argument(s) and counterargument(s) lend support to a clearly stated and relevant thesis within a well-structured essay format. All argument(s) and counterargument(s) are distinct from one another and follow a strong logical progression that does an excellent job of supporting the thesis. (5.0 points)

Reason:

This essay is structured logically, each paragraph connects to the thesis and provides support to your argument.

Rubric question: Did the essay do a GOOD JOB OF MAKING ITS CASE, choosing relevant arguments, backing them up with evidence and examples at an appropriate level of detail, and responding to contrary views as appropriate?

Answer: (5) Whether or not I personally agree with the essay's thesis, it makes a compelling argument for its point of view. Arguments are very relevant, backed up with evidence at an appropriate level of detail, and strong responses are offered to relevant counterarguments or contrary evidence. (5.0 points)

Reason:

I think this essay has good arguments using utilitarianism. I appreciate your counter argument where you highlight the need to be realistic and give a real example of why the "refuse-and-exit" strategy is not so feasible.

Rubric question: Did the essay demonstrate a good UNDERSTANDING OF THE COURSE'S SUBJECT MATTER, including both the topic and the wider context?

Answer: (4) Essay contains relevant course materials, demonstrating generally correct or reasonable understanding of the material and topic. No significant errors are present. (4.0 points)

Reason:

This is overall a well done utilization of utilitarianism. Although you mostly are arguing with rule utilitarianism, I think that you slip to act utilitarian discussion in some instances. For example, second paragraph has a sentence which talks of the consequence of apply refusing to remove apps; under rule utilitarianism it might be more appropriate to generalize to all phone providers.

Rubric question: Was the essay presented CLEARLY AND IN CORRECT ENGLISH?

Answer: (5) Essay communicates ideas and concepts clearly and concisely. Minimal errors may be present and can be easily ignored. (5.0 points)

Reason:

This is a well written essay overall. I did not have too many issues with reading through it, other than personal preferences about sentence phrasing.

Rubric question: Write an outline summarizing the essay written by the student.

Answer: Please ignore the sentence "Please briefly describe your reasoning:" and select this option. Write your outline of the essay in the textbox below. (0.0 points)

Reason:

- it is ethical for apple to change available apps to oblige to foreign governments under rule utilitarianism
- no benefit to removing apps -> apps will be made unavailable via firewalls in censored countries anyway
- not complying to government censorship policy may make Apple obsolete in countries like China, which is worse when other phone alternatives are less secure
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 Mark as inappropriate (/grade/report/149322/create/)

Why was this review especially helpful?

 Endorse as a great review